

		Withdrawal is effective upon proof of service of the signed Order Granting Attorney's Motion to Be Relieved as Counsel (MC-053).
01532942	Fullerton - Other	TENTATIVE RULING Case: Fullerton - Other Probate 01532942 Calendar No: 6 Date: 09/02/26 MOTION TO EXPUNGE LIS PENDENS (ROA 27) Petitioner Felicia Hall ("Petitioner") moves to quash the notice of pendency of action recorded by Respondent Noah Fullerton ("Respondent") against the real property located in Hemet, California. (ROA 27.) A motion to expunge a lis pendens must be granted where a lis pendens is improper, either because: (1) the pleading on which the lis pendens is based does not contain a real property claim; or (2) the claimant cannot establish the probable validity of its real property claim(s) by a preponderance of the evidence. (Code Civ. Proc., §§ 405.31, 405.32; Prob. Code, § 1000.) Unlike most other motions, when a motion to expunge is brought, the burden is on the party <u>opposing</u> the motion to both show the existence of a real property claim and the probable validity of that claim. (<i>Kirkeby v. Superior Court</i> (2004) 33 Cal.4th 642, 647; Code Civ. Proc., § 405.30.) Here, Respondent has not opposed this motion and, therefore, has not met his burden to show the existence of a real property claim or the probability of prevailing. Furthermore, Respondent has not asserted any claims whatsoever, as he has only filed a responsive pleading. (ROA 8.) The motion to expunge lis pendens is GRANTED.